PROTEST

OF THE

Cherokee Nation

AGAINST THE PASSAGE OF

HOUSE BILL [6309]:

"To provide further security to persons and property in the Indian Territory and for other purposes."

The bill violates treaty obligations, destroys vested rights and is clearly unconstitutional.

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WASHINGTON, D. C., *March 9th, 1896.*

TO THE SENATE AND HOUSE OF REPRESENTATIVES OF THE UNITED STATES CONGRESS:

We respectfully request permission to briefly call your attention to our objections to House Bill 6309: "To provide further security to persons and property in the Indian Territory, and for other purposes."

SECTION FIRST INDEFINITE.

Section first of the bill is exceedingly vague and indefinite, and we are at a loss to know what jurisdiction is intended to be conferred. A law should be so expressed as to be capable of but one construction, and more particularly when Indians, unaccustomed to the technicalities of the law, are to be affected by its provisions. This section, however, provides that the Federal Courts in the Indian Territory shall have exclusive jurisdiction, both in law and equity, over all causes, controversies, and suits concerning the tribal lands and other tribal property of either of the five civilized tribes and for the purpose of such suits they may be made parties plaintiff or defendant.

1. No non-citizen in the Cherokee Nation has or could have any right or interest, either legal or equitable, in the tribal land or common property of that Nation for the protection of which he could desire to institute proceedings in the Federal Courts for the reason that the land for a consideration was patented in 1838 to the Cherokee Nation, in 1839 the constitution of the Cherokee Nation was adopted which provides: "The lands of the Cherokee Nation shall remain common property" (sec. 2, art. 1), and laws have always been in force prohibiting the sale or lease of real estate to non-citizens. If any such person

validity of a legislative enactment—the rule of finality is the same. The controversy has been adjudged, and, once finally passed upon, it is never to be renewed.'' 7 Cranch, 565; 16 How., 114; 7 Wall., 82; 20 Wall., 137; 23 Wall., 458; 20 Ark., 85.

4. No one can demand an admission to citizenship as a matter of right, either legal or equitable, but it is only a matter of grace on part of the Cherokee Nation. All Cherokees east of the Mississippi at the time of their removal west who were identified with them, and as a consequence entitled to anything because of his blood interest, removed west with the tribe, and are living with them, enjoying equal participation in the lands and funds, or they took their pro rata share in the Eastern States, and cannot after disposing of it come to the Cherokee Nation and demand a second apportionment of the beautiful country, made so from wild forests by the privations of other Cherokees.

5. This right is inseparable from the right to the use of the soil, because upon favorable determination of an applicant it entitles him to the same, hence if a right to use and control the land patented to us is a vested right the right to re-admission to citizenship must be, and Congress cannot constitutionally take it away.

ALLOTMENT OF LANDS.

Section 5 provides that after the roll is completed in accordance with the last section, the Commission shall proceed to the allotment of the exclusive use and benefit all the lands except town sites, mineral lands, and those incapable of division. Lands heretofore disposed of are also reserved.

1. How can you divest one of the use of lands patented to the tribe, legally acquired, when the laws of the respective nations under which he acquired it were author-

ized by the treaties with the United States? Congress has no more right to force a division of the use of the lands of the Cherokees than it has to compel heirs to an estate to individualize their interest or the share-holders of a corporation to divide their stock. This is not a political but clearly a property right, for if you can allot the use of the land, unquestionably you have the authority to individualize the fee. Congress has no constitutional right to interfere with rights under treaties, except in cases purely political. Holden *vs.* Joy, 17 Wall., 247; Wilson *vs.* Wall, 6 Wall., 89; Insurance Company *vs.* Carter, 1 Peters, 542; Doe *vs.* Wilson, 23 Howard, 461; Mitchell *vs.* United States, 9 Peters, 749; The Kansas Indians, 5 Wallace, 737; 2 Story on Constitution, Sec. 1508; Foster *vs.* Neilson, 2 Peters, 254; Crews *vs.* Burchum, 1 Black., 356; Worcester *vs.* Georgia, 6 Peters, 562; Blair *vs.* Pathkiller, 2 Yeager, 407; Harris *vs.* Burnett, 4 Blackford, 369; United States *vs.* Ben Reese, 5 Din., 405.

In 99 U. S. 719 the court said: "No change can be made in the title created by the grant of the lands without the consent of the corporotion."

2. Article I., Section 2, of the Constitution of the Cherokee Nation provides: "The lands of the Cherokee Nation shall remain common property; but the improvements made thereon, and in the possession of the citizens of the Nation, are the exclusive and indefeasible property of the citizens respectively who made, or may rightfully be in possession of them." In pursuance of this section and by authority of Article 5, Treaty 1835, the Cherokee Nation has passed laws regulating the settlement of the public domain. Under these laws improvements with irregular boundaries have been made; this division will necessitate the taking of land in squares, which will force the legal and rightful occupant of improvements, honestly acquired, to abandon the same without a trial or compen-